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United States District Court, N.D. California

DOE
v.
CLOUDFLARE, INC.

Case No. 25-cv-10300-AGT

Decided September 2, 2026

Opinion of the court

Attorneys and Law Firms Craig M. Peters, Altair Law, San Francisco, CA, Rosalyn Sia Baker-Barnes, Pro Hac Vice, T. Hardee Bass III, Pro Hac Vice, Searcy Denney Scarola Barnhart & Shipley, P.A., West Palm Beach, FL, for Plaintiff. Oliver M. Kiefer, ZwillGen Law LLP, San Francisco, CA, for Defendant

ORDER ON MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT Re: Dkt. No. 44 Alex G. Tse, United States Magistrate Judge Previously, the Court granted Cloudflare's motion to dismiss the first amended complaint. The Court held that Section 230(c)(1) of the Communications Decency Act, 47 U.S.C. § 230(c)(1), barred Plaintiff's claim against Cloudflare for violations of the Violence Against Women Act Reauthorization Act of 2022 § 1309, 15 U.S.C. § 6851. Dkt. 40. In opposing Cloudflare's motion to dismiss the first amended complaint, Plaintiff had requested leave to amend but hadn't explained how she could amend her complaint to avoid § 230(c)(1) immunity. Rather than deny leave outright at that